HIL (India) Limited.
Scope Complex, Core-6, 2nd Floor
7, Lodhi Road, New Delhi-110003
Website: www.hil.gov.com

Subject: EOI for marketing agent for marketing of Bio Agri Inputs.

HIL (INDIA) LIMITED (A Govt. of India Enterprise) is a Public Sector company, engaged in manufacturing of various pesticides for crop protection as well as for public health use and engage in production of high-quality seeds of cereals, pulses, oilseed, vegetable seeds, fodder seeds etc. HIL is having pesticide/water soluble fertilizer manufacturing Units at Rasayani, Maharashtra.

HIL(India) Limited, hereby invites Expression of Interest for empanelment of Marketing agent for marketing of Bio Agri Inputs to State Government/Government companies/Institutions and various Indian & Foreign buyers through marketing channel of HIL (India) Limited.

Interested firms may submit their EOI with their relevant credentials & experience in this field. The qualification criteria, detailed scope work and other terms and conditions are attached as annexures. All the documents duly signed & stamped shall be submitted in PDF format on mail id: commercialho@hil.gov.in and hard copy send to **Manager (Commercial), HIL (INDIA) LIMITED, SCOPE Complex, Core-6, 2nd Floor Lodhi Road New Delhi 110003. (M: 9560609280)**

Further details, if any, may be obtained from during working hours from:

Manager (Commercial)
Ph: 011-24362625
Mob: +91-9560609280
Email: commercialho@hil.gov.in

Particulars	**Details**
EOI Ref. No.	**Ref: HIL/BIO/MKTG AGENT/1/2024-25**
Date of Publishing	**20.12.2024.**
Bid submission last date & time	**EOI ON ROLLING BASIS.**

The purpose of this EOI is to select Marketing agent for marketing of Bio Agri Inputs for the scope of work.

The EOI will be scrutinized based on the qualification criteria mentioned in the EOI enquiry. HIL may cancel the entire process of this exercise at its own discretion. HIL's decision/discretion in all matters shall prevail and considered to be final for this exercise.

Any Addendum/Corrigendum in respect of this Expression of Interest shall be issued on our website www.hil.gov.in only and no separate notification shall be issued in the press or to individual vendors. Bidder/ Service Providers are therefore requested to regularly visit our above website for this Expression of Interest to keep themselves updated.

COMMERCIAL MANAGER
HIL (INDIA) LIMITED

Scope of Work

a. The supply orders shall be collected by the Marketing Agent on behalf of HIL (India) Limited. If the orders are directly obtained by HIL (India) Limited, the Marketing Agent shall not be entitled to a commission.

b. The supply shall be made directly to the purchaser as per the terms and conditions specified in the supply order. The Marketing Agent shall be informed about the dispatches. The supply shall be made on a credit basis.

c. The Marketing Agent shall be responsible for the timely realization of payments. The payable commission shall only be disbursed after the payment is realized.

- 40% of the total commission shall be paid after realizing 50% of the total sale proceeds.
- The remaining 60% of the commission shall be paid after realizing the entire sale proceeds. If the Marketing Agent fails to realize full or partial payment from the purchaser, they shall be held responsible, and HIL (India) Limited reserves the right to recover the amount from the Marketing Agent.

d. The Marketing Agent shall work in coordination with the designated HIL (India) Limited officials of Regional Sales Office (RSO). Claims and commissions submitted by the Marketing Agent shall be considered valid only after verification by the concerned Regional Sales Office (RSO).

e. A minimum sales target shall be established based on the average sales of the last three years. The Marketing Agent shall deposit a security amount of ₹1,00,000/- via Demand Draft (DD), RTGS, or NEFT. No interest shall be paid on the security deposit.

f. Commission charges slab against the invoice value to be paid to the Marketing Agent as below.

Target Turnover	**Commission Rate**
0-25 Lakhs	**25%**
26-50 Lakhs	**30%**
51 -75 Lakhs	**35%**
76-100 Lakhs	**40%**

g. The cut-off date for the recovery of payments shall be four months from the date of supply.

h. Sales returns shall generally not be allowed. However, in exceptional cases, a sales return of up to 10% may be permitted upon submission of the required supporting documents. If the sales return exceeds 10%, the Marketing Agent shall be penalized with a deduction of 50% of their payable commission. This 50% shall be over and above the commission reversible on sales return.

i. In cases of delayed payment, the Marketing Agent shall be penalized with a deduction of 10% of their payable commission. This penalty shall be applied during the reconciliation conducted in the last month of the financial year.

j. The Marketing Agent shall provide an interest-free Earnest Money Deposit (EMD) of ₹1,00,000/-. The EMD of the successful bidder shall be retained as Security Deposit.

k. Arranging warehouse, other than HILs C&F, secondary freight, testing of samples if required, Marketing and other expenses related to liquidation of stocks, are in the Scope of Party.

1. **Business Cycle Year:**

The business year shall be 1st April to 31st March consisting seasons as follows:

Kharif Season : 1st April to 30th Sept.

Rabi & Summer Season: 1st Oct to 31stMarch

2. **Eligibility of Marketing agent:**

Type of Marketing agent	**Certifying Authority/ Documents**
Sole Proprietary Firm	From Registrar of Firms or any other document in support
Partnership Firm	Partnership deed
Private Limited Company & Public Limited Company	Duly Registered with Registrar of Companies (ROC)
Sale and Purchase Co-operative Society/Sangh	Duly Registered with State Govt.
Sale and Purchase Multistate Co-operative Society/Sangh	Duly Registered with Central Govt. Registrar of Cooperative Societies.
Farmers & Producers Organization	Accredited/Registered with Small Farmer Agriculture Consortium. (SFAC)
Sole proprietary firm whose proprietor requires special needs (Physically disadvantaged having impairment of more than 50%)	Duly Certified by Authorized Medical Attendant of Govt. Hospital

3. **Pre-qualification criteria of Applicants:**

The interested Marketing agent is required to have the following as per the pre-qualification criteria:-

(i) The experience of any Agriculture inputs of minimum 2 years (if any).

(ii) Certificate of Incorporation /Proprietorship/ Partnership etc.
(iii) Registration certificates with Tax authorities or MSME Registration and Government Departments.

(iv) Company's PAN/ GST number.

(v) Bank Solvency certificate.

(vi) Audited Annual Accounts of the last two financial years.

(vii) Last 2 years' Income tax return Certificate (attach copies).

(viii) The prospective Marketing agents should not have been blacklisted / banned for marketing of Bio Agri input by any State govt. /Govt. Agency/Government of India or by any Government Undertaking.

4. Security Deposit to be paid by marketing agent:

Type of Marketing agent	For All Over India
Proprietary of Partnership firms with Single/Multiple Outlets at Taluk/Mandal/District Level.	Rs.1,00,000.00
State Level Co-operative Society with Single/Multiple Outlets at Taluk/Mandal/ District Level. Multi-State Co-op. Society	
All Others	

The Security Deposit shall be in favor of HIL (India) Limited, New Delhi and shall be 'Free of Interest Charge Payment' i.e. Marketing agent shall not receive any interest charges for the Security Deposit paid to HIL (India) Limited. Security will be refunded upon termination of Marketing agent ship after agreed period, However in case of breach of agreement security deposit may be forfeited.

5. Submission of Expression of interest:

i. Interested Marketing agent may download application form for Expression of Interest document from www.hil.gov.in and shall submit Expression of Interest documents in original down loaded form, duly signed and stamped at each page as token of acceptance of all terms and conditions.

ii. The Expression of interest must contain the name, designation and place of Business of the person with Phone and Mob. Nos. of persons making the expression of interest and must be signed and sealed by the Prospective Marketing agent with his usual signature.

iii. The signatory of the application qua this EOI shall be authorized to sign and submit the EOI to bind the corporation/company/Firm in the matter must sign expression of interests by corporations/companies/Firm with the legal name of the Corporations/ Companies/Firm.

iv. Each page of EOI has to be numbered consecutively and signed & stamped, as a token of acceptance of all terms and conditions.

v. Following documents has to be submitted along-with Application/ EOI in a sealed cover (superscripted with tender reference number)

(a) Request for empanelment on company's letter head.

(b) The interest free EMD for this application shall be Rs. 1,00,000/-(Rs. One Lac Only), which shall be adjusted towards security deposit in case of a successful applicant and EMD deposited by unsuccessful applicant shall be refunded to them without any interest after completion of empanelment process.

(c) Annexure-I, II, III and Annexure-IV duly filled in, signed and stamped.

(d) Copy of EOI document duly signed and stamped on each page as a token of unconditional acceptance of all terms and conditions/clauses.

(e) Documents as per Sr. No. 3

6. Place for submission of Expression of Interest:

The Expression of Interest should be addressed to Commercial Manager, HIL (India) Limited, SCOPE Complex, Core-6, 7 Lodhi Road, New Delhi-110003 and the request for empanelment along with duly filled in enclosures viz. Annexure-I & II and all the required documents should reach the concerned.

7. Agreement:-

Marketing agent shall have to sign an agreement on Rs. 500/- non judicial stamp paper as per the judicial requirement of respective state within one month from issuing of order.

8. Period of Marketing agent:-

The Marketing agent shall be awarded for a period of 2 years from the date of agreement and with satisfactory performance may be extendable for 2 more years. Appraisal of Marketing performance will be done annually and can be withdrawn based on performance.

9. Grant of Marketing agent ship;-

Normally the area of operation for a Marketing agent shall be one district/ State depending availability of the Bio-agri Inputs. If area of operation increases beyond one State then separate agreement has to be executed for additional State after approval from Head Office of HIL (India) Limited, New Delhi.

10. Marketing agent shall comply with,

All the statutory requirement under The FCO Act/ Insecticide Act 1968; and all the other statutory compliance for the area of operation of marketing agent.

11. Advance booking order Scheme: The Advance Booking order Scheme shall be informed time to time.

12. Continuity of Business:

The Marketing agent shall have to conduct business in each season i.e. Kharif, Rabi & Summer during each year.

13. Termination:

Either Party can terminate the Marketing agent ship by giving 'One Month' notice in writing to the other Party.

14. General Terms & Conditions:

14.1 HIL (India) Limited reserves the right to accept or reject any offer of Expression of Interest from Interested Marketing agents without assigning any reasons whatsoever.

14.2 The Marketing agent, whose quotation/offer is accepted by HIL (India) Limited for quoting further against tenders of its buyers, shall not submit any other offer directly / indirectly or through any other PSU/Company in the same Tender.

14.3 Final selection of Marketing agents from amongst the panel for participating in any tender will be done at the discretion of HIL (India) Limited and the decision of HIL (India) Limited shall be final and binding on all the empanelled parties.

14.4 Selection in the panel at no point of time guarantees any award of work by HIL (India) Limited through this empanelment and the Marketing agents who fails to get the opportunity shall not have any right to claim any damages whatsoever against HIL (India) Limited.

14.5 The Marketing agents may clearly note that terms and conditions enumerated in this EOI are only illustrative and not exhaustive. The chosen Marketing agents from the panel will have to enter into agreement as devised by HIL (India) Limited to fully protect HIL (India) Limited's overall interests and also the interests of the prospective buyers.

14.6 The prospective Marketing agents can also be asked to furnish additional information / confirmation in connection with verification of the documents submitted by the Marketing agent, if deemed necessary.
14.7 The validity of this Panel shall be initially for two years which may subsequently be extended for a further period of two year at the sole discretion of HIL (India) Limited. HIL (India) Limited also reserves the right to reduce the validity of the panel at their sole discretion.
14.8 The selected Marketing agents shall ensure compliance of all the Government regulations conventions / policies /guidelines /orders etc. in force related to any or all of the activities covered.
14.9 All details and terms and conditions of this document shall have to be considered by the prospective Marketing agents in totality and the expression of interest containing incomplete documents & not complying with the above conditions are liable to be rejected.
14.10 Initially the Marketing agents shall be empanelled provisionally. However, for final empanelment, each Marketing agent has to give a declaration that the Marketing agent or any of its Members of Board of Directors and/or its promoters do not have any crossholding/ shareholding directly and/or indirectly in any manner whatsoever in the other Marketing agents being empanelled by HIL (India) Limited.
14.11 Prospective Marketing agents who qualifies as empanelled Marketing agents to HIL (India) Limited would be individually notified after the evaluation process of empanelment is complete.
14.12 HIL (India) Limited reserves the right to remove any Marketing agents from empanelment list at their sole discretion without assigning any reason thereof.
14.13 The Successful bidder will be required to sign Integrity Pact. It will be assumed that successful bidder have gone through the Integrity Pact (Annexure-IV of this tender documents) and have no objections whatsoever in signing the contract.
14.14 The appointed marketing agent will only be allowed to carry out the business in the assigned state. The performance of the agent will be reviewed every six month and the term shall be extended based on the satisfactory performance. One agent per state shall be appointed on first come first serve basis.

15. **EMD:** Bidders must submit **Earnest Money deposit of Rs. 1,00,000/- (Rupees One Lac only).** The Bidder will have the option of submitting the EMD either in Demand Draft/Pay order favoring HIL (INDIA) LIMITED drawn of any scheduled/Nationalized Bank payable in New Delhi or as Bank Guarantee from any scheduled/Nationalized Bank. EMD can also be deposited in HIL (INDIA) LIMITED account through RTGS/NEFT and details of this transaction with UTR no. to be submitted along with Technical Bid. Bids received without EMD shall be rejected. EMD by unsuccessful Bidders shall be returned as early as possible. No Interest will be paid on EMD. Parties can opt for electronic refund of EMD, however charges, if any, shall be borne by the Bidder. HIL (INDIA) LIMITED takes no responsibility for delay loss or non-receipt of EMD sent by post/courier.
    EMD should be given in the form of a Bank Draft/Pay Order/ RTGs in favor of M/s HIL(India) Ltd, New Delhi payable on any Annexured Bank at New Delhi (The along with their offer account no. 344901010070509, IFSC Code UBIN0549789 ,Union Bank Of India, Branch Middle Circle Connaught Circle New Delhi-110001. The EMD will be refunded only after satisfactory completion of the supply and on expiry of contact without any interest. The EMD of the un-successful parties will be refunded.

16. Micro and Small Enterprises (MSE) and the small-scale units registered with NSIC are exempted from Tender Document fee & EMD but Authenticated copy of the valid registration certificate should be submitted along with bid to qualify for such exemptions.
17. **Force Majeure:** If the execution of the services by the successful Bidder is delayed as a result of outbreak, acts of God or any other natural calamities acts of nature, Bidder shall immediately consult with HIL to determine the measures to be taken. The Marketing agent has to provide proof of existence of such conditions to entire satisfaction of HIL duly certified by an appropriate authority as required by HIL, in the event of enforcement of the force majeure clause to justify the delay in execution of the work

18. **Ownership of EOI Documents and Information therein:**

All Expression of Interest documents will become the property of HIL (India) Limited upon submission. Where the prospective Marketing agent believes that information provided in response to this EOI is, or should be kept confidential; or disclosure of this information would unreasonably affect Marketing agents' business affairs, notice is to be given at the time

of delivery of the information or documents by clearly marking such information 'confidential'. In so far as is practicable HIL (India) Limited will give effect to the prospective Supplier stated wishes, and requests for access to such information will be determined by HIL (India) Limited.

19. No Contractual Obligation:

HIL (India) Limited is not bound contractually or in any other way to any prospective Marketing agents to this Expression of Interest. HIL (India) Limited is not liable for any costs of compensation in relation to the consideration of this Expression of Interest or any Expression of Interest, incurred by the prospective Marketing agents to this Expression of Interest whether or not HIL (India) Limited terminates, varies, or suspends the Expression of Interest process or takes any other action permitted under this Expression of Interest, including consideration of concepts proposed in future developments.

20. Indemnification:

i. All other statutory taxes, statutory dues, local levies, as applicable shall be remitted to the Government by the licensee in addition to the remittance of quoted License Fee to the HIL (India) Limited The successful bidder shall indemnify HIL (India) Limited from any claims that may arise from the statutory authorities in connection with this License Agreement.

ii. The successful bidder shall be solely responsible to pay all the statutory payments/dues, taxes and duties, royalties, revenue etc. to CIDCO/BMC/ statutory bodies and HIL (India) Limited shall not in any manner, be responsible for payment of such dues. The successful bidder shall also indemnify HIL (India) Limited against payment of all such dues to statutory bodies and imposition of any penalty due to non-payment of any such dues or any other account whatsoever.
The successful bidder shall indemnify and keep indemnified HIL (India) Limited against any loss / damage to any person/ property from any legal suit / claim filed on this account by any third party. The successful bidder will at all times abide by all safety procedures and rules as may be stipulated by local bodies/ HIL (India) Limited from time to time.

iii. The successful bidder shall fully indemnify HIL (India) Limited against any actions, claim related to design/ patent / trademark etc., and shall be solely responsible for payment of royalties etc. which may be payable for any item included in the contract.

iv. The successful bidder shall indemnify and keep indemnified the HIL (India) Limited against all losses and claims for injuries or damage to any persons or any property whatsoever which may arise out of or in consequence of the Demolition of existing godown, Construction and maintenance of works and against all claims, demands proceedings, damages costs, charges and expenses whatsoever in respect of or in relation thereto.

v. The successful bidder agrees and undertakes to indemnify and keep indemnified HIL (India) Limited harmless against any and all liabilities, Losses, damages, claims, expenses suffered by the HIL (India) Limited as a result of any breach committed by him on this account.

vi. The successful bidder shall obtain electricity connection for lighting of the pillars from BSES/ local electricity supply body. In such case the party shall indemnify HIL (India) Limited from any liabilities arising out of non-payment of dues/ imposition of penalty/ any other charges due to BSES/ DERC/ local electricity supply body and HIL (India) Limited shall not in any manner be responsible for payment of such dues/ penalty etc.

vii. After completion of construction of the cold storage and before commencing the operations the selected bidder shall submit the details of plant and Machinery installed. The bidder shall also inform to HIL (India) Limited about any subsequent additions of plant and machinery made/installed.

21. CONFIDENTIALITY:

Information relating to the examination, clarification, evaluation, and recommendation for the Bidders shall not be disclosed to any person who is not officially concerned with the process or is not a retained professional advisor advising HIL (India) Limited in relation to, or matters arising out of, or concerning the Bidding Process. HIL (India) Limited shall treat all information, submitted as part of Bid, in confidence and shall require all those who have access to such material to treat the same in confidence. HIL (India) Limited may not divulge any such information unless it is directed to do so by any statutory entity that has the power under law to require its disclosure or is to enforce or assert any right or privilege of the statutory

entity and/ or HIL (India) Limited or as may be required by law or in connection with any legal process.

22. APPLICABLE LAW JURISDICTION AND DISPUTE RESOLUTION:

(a) This agreement shall be constituted and the legal relation between the parties hereto shall be determined and governed according to the laws of Republic of India and only courts at High Court of Delhi shall have the jurisdiction in all matters arising out of / touching and/ or concerning this agreement and parties to this agreement agree to irrevocably submit to the exclusive jurisdiction of those courts for purposes of any such proceeding. The aforementioned exclusive and irrevocable jurisdictions of aforesaid courts are irrespective of place of occurrence of any cause of action pertaining to any dispute between the parties.

(b) All or any disputes arising or touching upon or in relation to the terms of this agreement including the interpretation and validity of the terms thereof and the respective rights and obligations of the parties shall be settled amicably by mutual discussion failing which the same shall be settled through arbitration. The sale arbitrator will appoint by CMD of HIL (India) Limited. The arbitration proceedings shall be governed by the Arbitration and Conciliation Act of 1996 (as amended up to date) or any statutory amendments/modification thereof for the time being in force. The seat and venue of the arbitration shall be at New Delhi, India and the language of arbitration shall be English.

23. Integrity Pact:

Signing of Integrity Pact: Submission of duly signed Integrity Pact (IP), given at Annexure IV which is a prequalification for a bidder to participate in the bidding process. Integrity Pact is deemed as part of the contract and both the Buyer (HIL, in this case) and the contractor are bound by its provisions. Without submission of the IP, no bid shall be accepted.

HIL (INDIA) LIMITED
Regd. Office: Scope Complex, Core-6, 2nd Floor
7 Lodhi Road, New Delhi-110003

APPLICATION FOR MARKETING AGENT
PART-I
(To be filled in by the applicant use additional sheets where necessary)

Photograph with Sign

1. Name of the firm & Type of Marketing agent:
2. Postal Address:

   Block : Phone:

   Tehsil : Gram:

   District : E-mail:

   State :

   Pin code :
3. Name of the owner /partner(s)/Director : or Incharge (latest Photograph)
4. Whether registered with MSME? If, yes Registration No. &Date :
5. PAN No :
6. GSTNo. :
7. Banker's Name , Address & Account Number
8. Exact name of location/territory For which Marketing agent ship is applied :
9. How much total annual sales turnover can be achieved?
10. Professional experience in handling Agricultural inputs

	Kind	No. of years
	a. Seeds	
	b. Fertilizers/Bio fertilizer	
	c. Pesticides	
	d. Others	

11. Name of the other firms/institutions whose Marketing agent ship is presently held

12. Is this the first time HIL (India) Limited Marketing agent ship (Yes/No) whose dealership is presently held

13. If "NO" details of previous Marketing agent ship for HIL (India) Limited: Year From To

14. Reason for discontinuing

15. Any other relevant information :

Declaration

I/We have gone through the HIL (India) Limited's Marketing agent ship Terms and Conditions and agree to abide by them. The above facts are true to the best of my/our knowledge & belief.

Signature

(Authorized person in the case of firms) Name_____

Seal

Place:

Dated:

ANNEXURE-I

APPLICATION FORM FOR EMPANELMENT OF BIOAGRI INPUT MARKETING AGENT

(TO BE SUBMITTED ON LETTER HEAD)

To,
The Commercial Manager
HIL (INDIA) LIMITED
Regd. OFFICE SCOPE Complex, Core-6, 2nd Floor
7Lodhi Road, New Delhi-110003

SUB: EMPANELMENT OF MARKETING AGENT FOR SELLING OF BIO AGRI INPUTS.

Dear Sir,
Please refer to your advertisement published in dated /on HIL (India) Limited website inviting application for empanelment of Marketing agents for a period of two year for selling of bio Agri inputs.

We are pleased to quote as under:-

PART A)
NAME OF PRODUCT / ITEMS-

i) Bio Agri Inputs & Other implements.

ii) Specification of products / items

PART-B

SN	Particulars	Information
1.	Name of Firm	
2.	Registered and correspondence address	
3.	Type of Company (Pvt. Ltd/ Public Ltd/ Partnership Firm)	
4.	Attach documentary evidence./Year of establishment Name of Chief Executive	
5.	PAN No. (Attach copy)	
6.	GST No. (Attached copy)	
7.	MSME Registration	
8.	Bank Solvency Certificate	
9.	Whether blacklisted by Government department, public sector, quasi government Undertaking	
10	Financial status of the Company; (Attach Banker's Certificate)	
11	Name & Address of Banker	
12	Name & Designation with attested specimen signature of the authorized signatory	
13	Contact Person with Designation, mobile and landline number, e-mail ID, fax no. and website	
14	Details of payment of EMD	
15	Last 2 years' audited balance sheet (attach copies)	

16	Last 2 years' tax assessment Certificate & declaration u/s 206AB (attach copies)	

We hereby accept all the terms and conditions specified in EOI as a token of unconditional acceptance of all clauses.

We certify that all information furnished by us herewith is correct and true. In the event that the information given is found to be incorrect / untrue, HIL (India) Limited reserves the right to disqualify us or terminate our contract and forfeit security deposit amount without giving any notice or reason thereof.

Thanking you,

Yours faithfully,

(Authorized Signatory)

(Name & complete address of Applicant along with seal)

(ON COMPANY'S LETTER HEAD)
ANNEXURE II

To,
The Commercial Manager
HIL (INDIA) LIMITED
SCOPE Complex, Core-6, 2nd Floor
7Lodhi Road, New Delhi-110003

SUBJECT: UNDERTAKING

DATE_____

Dear Sir,

We, _____(Name of the Organization), hereby confirm and acknowledge that we have neither been blacklisted nor banned for participation in Tender process by Government of India or by any Government Undertaking or any Autonomous body in India for marketing of any crop seed, Bio-Agri Input and other work etc.

Thanking You

Yours faithfully

(ON YOUR COMPANY'S LETTER HEAD)

Declaration cum Undertaking pursuant to Section 206AB of the Income Tax Act, 1961

To,
M/s HIL (India) Limited
India.

Dear Sir/Madam,

Subject: Declaration confirming filing of Income Tax Return for immediate 3 preceding years

I, Ms/Mr/M/s. _____ in capacity of Self/Proprietor/Partner/Director of _____ (Name of entity) having TMID_____, PAN _____ (PAN of Entity) registered office/permanent address at _____ do hereby confirm that our income tax return filing status for last 3 Financial Years is as given under:

Financial Year for which Income Tax Return was due as per Section 139(1)	Filed / Not filed	Date of Filing	ITR Acknowledgement No.	TDS/TCS is Rs. 50000/- or more (Yes/No)

I/We hereby undertake to indemnify M/s HIL (India) Limited for any claim/loss/liability/cause of action fully including any Tax, interest, penalty, etc. that may arise due to inaccurate/false/incorrect reporting of any of the above information.

For _____ (Name of Entity)

Signature: _____
Name of person: _____
Designation: _____
Place: _____
Date: _____

Annexure-IV
NIT NO.: HIL/BIO/MKTG AGENT/1/2024-25
DATE OF ISSUE OF NIT: 20.12.2024.

PRE-CONTRACT INTEGRITY PACT
(On Rs. 100 Non-Judicial Stamp Paper)

General

This pre-bid pre-contract Agreement (hereinafter called the Integrity Pact) is made on……. Day of the month of ……20…, between, on one hand, HIL (INDIA) LIMITED/Subsidiary Cos. acting through Shri **Abhay Kumar Sinha (Manager Commercial)**, (hereinafter called the "BUYER", which expression shall mean and include, unless the context otherwise requires, his successors in office and assigns) of the First Part and M/s. ……..represented by Shri……, Chief Executive Officer (hereinafter called the "BIDDER/Seller" which expression shall mean and include, unless the context otherwise requires, his successors and permitted assigns) of the Second Part.

WHEREAS the BUYER proposes to procure ……(Name of the Stores/Equipment/Item) and the BIDDER/Seller is willing to offer/has offered the stores and understands that this Integrity Pact has to be executed between the parties as a prequalification for the Bidder to participate in the bidding process and

WHEREAS the BIDDER is a private company/public company/Government undertaking/ partnership/ registered export agency, constituted in accordance with the relevant law in the matter with Headquarters at .....in (Name of the country) and the Buyer is a Central Public Sector Unit, under the Ministry of Chemicals and Fertilizer, Government of India.

Bidder understands that Signing of the Integrity pact does not in any way guarantee awarding of the contract to the bidder signing the Integrity pact.

Both Buyer and Bidder understand that Integrity Pact is deemed to be a part of the Contract (to be executed later with the successful Bidder).

NOW, THEREFORE,

To avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealings prior to, during and subsequent to the currency of the contract to be entered into with a view to :-

Enabling the BUYER to obtain the desired said stores/equipment at a competitive price in conformity with the defined specifications by avoiding the high cost and the distortionary impact of corruption on public procurement, and

Enabling BIDDERs to abstain from bribing or indulging in any corrupt practice in order to secure the contract by providing assurance to them that their competitors will also abstain from bribing and other corrupt practices and the BUYER will commit to prevent corruption, in any form, by its officials by following transparent procedures.

In order to achieve these goals, HIL has appointed Independent External Monitors (IEMs), on the recommendations of the Central Vigilance Commission (CVC), who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.

The parties hereto hereby agree to enter into this Integrity Pact and agree as follows:

Commitments of the BUYER

1.1 The BUYER undertakes that no official of the BUYER, connected directly or indirectly with the contract, will demand, take a promise for or accept, directly or through intermediaries, any bribe, consideration, gift, reward, favour or any material or immaterial benefit or any other advantage from the BIDDER, either for themselves or for any person, organization or third party related to the contract in exchange for an advantage in the bidding process, bid evaluation, contracting or implementation process related to the contract.

1.2 The BUYER will, during the pre-contract stage, treat all BIDDERs alike and will provide to all BIDDERs the same information and will not provide any such information to any particular BIDDER which could afford an advantage to that particular BIDDER in comparison to other BIDDERs.

1.3 All the officials of the BUYER will report to the appropriate Government office any attempted or completed breaches of the above commitments as well as any substantial suspicion of such a breach.

2. In case any such preceding misconduct on the part of such official(s) is reported by the BIDDER to the BUYER with full and verifiable facts and the same is prima facie found to be correct by the BUYER, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the BUYER and such a person shall be debarred from further dealings related to the contract process. In such a case while an enquiry is being conducted by the BUYER the proceedings under the contract would not be stalled.

Commitments of BIDDERs

3. The BIDDER commits itself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of its bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commit itself to the following :-

3.1 The BIDDER will not offer, directly or through intermediaries, any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the BUYER, connected directly or indirectly with the bidding process, or to any person, organization or third party related to the contract in exchange for any advantage in the bidding, evaluation, contracting and implementation of the contract.

3.2 The BIDDER further undertakes that it has not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the BUYER or otherwise in procuring the Contract or forbearing to do or having done any act in relation to the obtaining or execution of the contract or any other contract with the Government for showing or forbearing to show favour or disfavour to any person in relation to the contract or any other contract with the Government.

3.3* BIDDERs shall disclose the name and address of agents and representatives and Indian BIDDERs shall disclose their foreign principals or associates.

3.4* BIDDERs shall disclose the payments to be made by them to agents/brokers or any other intermediary, in connection with this bid / contract.

3.5* The BIDDER further confirms and declares to the BUYER that the BIDDER is the original manufacturer/integrator/authorized government sponsored export entity of the defence stores and has not engaged any individual or firm or company whether Indian or foreign to intercede, facilitate or in any way to recommend to the BUYER or any of its functionaries, whether officially or unofficially to the award of the contract to the BIDDER, nor has any amount been paid, promised or intended to be paid to any such individual, firm or company in respect of any such intercession, facilitation or recommendation.

3.6 The BIDDER, either while presenting the bid or during pre-contract negotiations or before signing the contract, shall disclose any payments he has made, is committed to or intends to make to officials of the BUYER or their family members, brokers or any other intermediaries in connection with the contract and the details of services agreed upon for such payments.

3.7 The BIDDER will not collude with other parties interested in the contract to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract.

3.8 The BIDDER will not accept any advantage in exchange for any corrupt practice, unfair means and illegal activities.

3.9 The BIDDER shall not use improperly, for purposes of competition or personal gain, or pass on to others, any information provided by the BUYER as part of the business relationship, regarding plans, technical proposals and business details, including information contained in any electronic data carrier. The BIDDER also undertakes to exercise due and adequate care lest any such information is divulged.

3.10 The BIDDER commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts.

3.11 The BIDDER shall not instigate or cause to instigate any third person to commit any of the actions mentioned above.

3.12 If the BIDDER or any employee of the BIDDER or any person acting on behalf of the BIDDER, either directly or indirectly, is a relative of any of the officers of the BUYER, or alternatively, if any relative of an officer of the BUYER has financial interest/stake in the BIDDER's firm, the same shall be disclosed by the BIDDER at the time off filing of tender.

The term 'relative' for this purpose would be as defined in Section 6 of the Companies Act 1956.

3.13 The BIDDER shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the BUYER.

4. **Previous Transgression**

4.1 The Bidder declares that no previous transgression occurred in the last three years reckoned from the date of bid submission with any other company in any country in respect of any corrupt practices envisaged in the tender process. The transgression(s) for which cognizance was taken even before the

said period of three years, but are pending conclusion, shall also be reported by the bidder. The bidder will also disclose instances of transgression, if any that may have occurred elsewhere during the execution of the contract

4.2 The BIDDER agrees that if it makes incorrect statement on this subject, BIDDER can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

6. **Sanctions for Violations**

6.1 Any breach of the aforesaid provisions by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER) shall entitle the BUYER to take all or any one of the following actions, wherever required:

i) To immediately call off the pre contract negotiations without assigning any reason or giving any compensation to the BIDDER. However, the proceedings with the other BIDDER(s) would continue.

ii) The Earnest Money Deposit (in pre-contract stage) and/or Security Deposit/Performance Bond (after the contract is signed) shall stand forfeited either fully or partially, as decided by the BUYER and the BUYER shall not be required to assign any reason therefore.

iii) To immediately cancel the contract, if already signed, without giving any compensation to the BIDDER.

iv) To recover all sums already paid by the BUYER, and in case of an Indian BIDDER with interest thereon at 2% higher than the prevailing Prime Lending Rate of State Bank of India, while in case of a BIDDER from a county other than India with interest thereon at 2% higher than the LIBOR. If any outstanding payment is due to the BIDDER from the BUYER in connection with any other contract for any other stores, such outstanding payment could also be utilized to recover the aforesaid sum and interest.

v) To encash the advance bank guarantee and performance bond/warranty bond, if furnished by the BIDDER, in order to recover the payments, already made by the BUYER, along with interest.

vi) To cancel all or any other Contracts with the BIDDER. The BIDDER shall be liable to pay compensation for any loss or damage to the BUYER resulting from such cancellation/rescission and the BUYER shall be entitled to deduct the amount so payable from the money(s) due to the BIDDER.

vii) To debar the BIDDER from participating in future bidding processes of the HIL (India) Limited. for a minimum period of **two years**, which may be further extended at the discretion of the BUYER.

viii) To recover all sums paid in violation of this Pact by BIDDER(s) to any middleman or agent or broker with a view to securing the contract.

ix) In cases where irrevocable Letters of Credit have been received in respect of any contract signed by the BUYER with the BIDDER, the same shall not be opened.

x) Forfeiture of Performance Bond in case of a decision by the BUYER to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.

6.2 The BUYER will be entitled to take all or any of the actions mentioned at para 6.1(i) to (x) of this Pact also on the Commission by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER), of an offence as defined in Chapter IX of the Indian Penal code, 1860 or Prevention of Corruption Act, 1988 or any other statute enacted for prevention of corruption.

6.3 The decision of the BUYER to the effect that a breach of the provisions of this Pact has been committed by the BIDDER shall be final and conclusive on the BIDDER. However, the BIDDER can approach the Independent Monitor(s) appointed for the purposes of this Pact.

7. **Fall Clause**

7.1 The BIDDER undertakes that it has not supplied /is not supplying similar product/systems or subsystems at a price lower than that offered in the present bid in respect of any other Ministry/Department of the Government of India or PSU and if it is found at any stage that similar product/systems or sub systems was supplied by the BIDDER to any other Ministry/Department of the Government of India or a PSU at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded by the BIDDER to the BUYER, if the contract has already been concluded.

8. **Independent Monitors**

8.1 HIL has appointed the following person as Independent Monitor for this Pact in consultation with the Central Vigilance Commission

Name:- Shri Jojneswar Sharma,
Address: - House No. 27, Dr. Zakir Hussain Path,
SARUMOTORIA (Hengerabari), District Kamrup (Metro), Guwahati 781036, Assam '
M No. 8806777701, E-mail: sharmajoi@gmail.com

(Note: IEMs should be contacted only for Integrity Pact-related issues. For any other grievances/complaints/clarifications related to the tender, concerned HIL officials as mentioned on the cover page of this NIT should be contacted.)

8.2 The task of the Monitors shall be to review independently and objectively, whether and to what extent the parties comply with the obligations under this Pact.

8.3 The Monitors shall not be subject to instructions by the representatives of the parties and perform their functions neutrally and independently.

8.4 Both the parties accept that the Monitors have the right to access all the documents relating to the project/procurement, including minutes of meetings.

A summary of procurement/contract awarded, which are covered under the IP shall be shared by HIL with the IEMs on quarterly basis. However, the documents / records/ information having National Security implications and those documents which have been classified as Secret / Top Secret are not to be disclosed.

In the event of any dispute between the HIL and the contractor relating to those contracts where integrity pact is applicable, dispute will be first referred to the panel of IEMs with both parties

consenting, and the IEMs will try to resolve the dispute in a time bound manner. In case, the dispute remains unsolved even after mediation by the panel of IEMs, HIL may take further action as per the terms and conditions of the contract. The expenses incurred for holding meeting of IEMs for dispute resolution will be shared equally by the HIL and the Contractor/Bidder.
Bidder signing Integrity Pact shall not approach the Court while representing the matters to IEM and bidder will await their decision in the matter.

8.5 As soon as the Monitor notices, or has reason to believe, a violation of this Pact, he will so inform the Authority designated by the BUYER.

8.6 The BIDDER(s) accepts that the Monitor has the right to access without restriction to all Project documentation of the BUYER including that provided by the BIDDER. The BIDDER will also grant the Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his project documentation. The same is applicable to Subcontractors. The Monitor shall be under contractual obligation to treat the information and documents of the BIDDER/Subcontractor(s) with confidentially.

8.7 The BUYER will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the parties. The parties will offer to the Monitor the option to participate in such meetings.

8.8 The Monitor will submit a written report to the designated Authority of BUYER within 8 to 10 weeks from the date of reference or intimation to him by the BUYER/BIDDER and, should the occasion arise, submit proposals for correcting problematic situations.

9. **Facilitation of Investigation**

In case of any allegation of violation of any provisions of this Pact or payment of commission, the BUYER or its agencies shall be entitled to examine all the documents including the Books of Accounts of the BIDDER and the BIDDER shall provide necessary information and documents in English and shall extend all possible help for the purpose of such examination.

10. **Law and Place of Jurisdiction**

This Pact is subject to Indian Law. The place of performance and jurisdiction is the seat of the BUYER.

11. **Other Legal Actions.**

The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

12. **Validity**

12.1 The validity of this Integrity Pact shall be from date of its signing and extend upto 5 years or the complete execution of the contract to the satisfaction of both the BUYER and the BIDDER/Seller, including warranty period, whichever is later. In case, BIDDER is unsuccessful, this Integrity Pact shall expire after six months from the date of the signing of the contract.

12.2 Should one or several provisions of this Pact turn out to be invalid, the remainder of this Pact shall remain valid. In this case, the parties will strive to come to an agreement to their original intentions.

Note: If any prospective Bidder has any objection to sign the Integrity Pact, HIL will refer the matter to the IEMs for their opinion and advice.

12.3 The parties hereby sign this Integrity Pact at……on……..

BUYER Name of the Officer Designation HIL (INDIA) LIMITED/ Subsidiary Co.	BIDDER CHIEF EXECUTIVE OFFICER
Witness	Witness
1……..	1……..
2……..	2……